

Case Number.....

**PETITION FOR SEALING PURSUANT
TO VA. CODE § 19.2-392.12:1(A) AND/OR (B)**

(Specific misdemeanor convictions or deferred dismissals
and any related ancillary matters;
And/or ancillary matters related to previously sealed
charges or convictions)

..... Virginia Beach Circuit Court
CITY OR COUNTY

..... Maria-Alejandra O'Shaughnessy-Whitfield v. Commonwealth of Virginia
NAME OF PETITIONER

I am petitioning to seal criminal history record information and court records, including electronic records,
for the charges, convictions, or ancillary matters included in this petition.

(CHOOSE ONE OR BOTH OF THE FOLLOWING OPTIONS)

- I. ☒ This petition is being filed pursuant to Va. Code § 19.2-392.12:1(A), because I was convicted of the charge or the charge was deferred and then dismissed under one of the following statutes with an offense date on or after January 1, 1986: §§ 4.1-305, 18.2-96, 18.2-103, 18.2-119, 18.2-120, 18.2-134, 18.2-248.1, 18.2-265.3(A), or 18.2-415. **(SECTION A, PART 1 OF THIS FORM.)**
If applicable, I am also requesting to seal an ancillary matter related to the conviction or the charge that was deferred and then dismissed. **(SECTION A, PART 2 OF THIS FORM.)**
- II. ☐ This petition is being filed pursuant to Va. Code § 19.2-392.12:1(B), because I had a charge or conviction automatically sealed under Va. Code §§ 19.2-392.6:1, 19.2-392.7, or 19.2-392.11, and I am requesting that an ancillary matter related to that charge be sealed. **(SECTION B OF THIS FORM.)**

MY INFORMATION

My full name is:..... Maria-Alejandra O'Shaughnessy-Whitfield

My date of birth is:..... 1968-12-31 My sex is:.....

My race is:..... My social security number is:.....

PROCEED TO PAGE 2 OF THIS FORM TO COMPLETE SECTION A FOR PETITIONS FILED PURSUANT TO § 19.2-392.12:1(A).

IF YOU ARE NOT COMPLETING SECTION A, PROCEED TO PAGE 4 OF THIS FORM TO COMPLETE SECTION B FOR PETITIONS FILED PURSUANT TO § 19.2-392.12:1(B).

SECTION A, PART 1: PETITIONS FILED PURSUANT TO § 19.2-392.12:1(A):

This section is for charges that resulted in a conviction or charges that were deferred and then dismissed under one of the statutes listed below.

☐ I am requesting to seal a single charge or conviction. (List charge or conviction below).

OR

☐ I am requesting to seal more than one charge or conviction. (Identify the first charge or conviction below, and list additional charges or convictions on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO § 19.2-392.12:1(A), FORM CC-1203(A).)

INFORMATION ABOUT CHARGE OR CONVICTION TO BE SEALED

1. I ☐ was convicted ☐ had the charge deferred and then dismissed, for a violation the following offense with an offense date on or after January 1, 1986: **(SELECT ONLY ONE)**

- ☐ § 4.1-305, Purchasing or possessing alcoholic beverages
- ☐ § 18.2-96, Petit larceny (misdemeanor only)
- ☐ § 18.2-103, Concealing or taking possession of merchandise (misdemeanor only)
- ☐ § 18.2-119, Trespass
- ☐ § 18.2-120, Instigating trespass by others
- ☐ § 18.2-134, Trespassing on posted property to hunt, fish or trap
- ☐ § 18.2-248.1, Sale, gift distribution or possession with intent to sell, give or distribute marijuana (misdemeanor only)
- ☐ § 18.2-265.3(A), Sale or possession with intent to sell drug paraphernalia
- ☐ § 18.2-415, Disorderly conduct in public places

2. Case number for charge or conviction: CR24001276-01

Date of final disposition of charge or conviction:

Date of arrest:

Name of arresting agency:

Document Control Number (DCN), if available:

☐ Some or all of the above information is not reasonably available because

.....

3. Full name at time of arrest:

4. Court of final disposition:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

5. A copy of the warrant, summons or indictment is

☐ attached.

☐ not reasonably available because

.....

SECTION A, PART 2: PETITIONS FILED PURSUANT TO § 19.2-392.12:1(A):

This section is for requests to seal ancillary matters related to charges that resulted in a conviction or charges that were deferred and then dismissed under specified statutes.

☐ I am not requesting to seal any ancillary matters related to the charge or conviction to be sealed in Section A, Part 1 of this form.

OR

☐ I am requesting to seal an ancillary matter related to the charge or conviction to be sealed in Section A, Part 1 of this form. (Identify the first ancillary matter below and list additional ancillary matters on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO § 19.2-392.12:1(A), FORM CC-1203(A).)

INFORMATION ABOUT ANCILLARY MATTER TO BE SEALED

1. Ancillary Matter

Specific ancillary matter requested to be sealed is

- ☐ a violation or alleged violation of the terms and conditions of a suspended sentence, probation or parole;
- ☐ a violation or alleged violation of contempt of court;
- ☐ a charge or conviction for failure to appear; OR
- ☐ an appeal from a bail, bond, or recognizance order.

2. Case number for ancillary matter identified above:

Date of final disposition for ancillary matter:

Date of arrest for ancillary matter (if applicable):

Name of arresting agency for ancillary matter (if applicable):

Document Control Number (DCN), if available (if applicable):

☐ Some or all of the above information is not reasonably available because

.....

3. Full name at time of ancillary matter:

4. Court of final disposition for ancillary matter:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

5. A copy of the charging document for the ancillary matter (if applicable) is

☐ attached.

☐ not reasonably available because

.....

PROCEED TO THE NEXT PAGE TO COMPLETE SECTION B FOR PETITIONS FILED PURSUANT TO § 19.2-392.12:1(B). IF YOU ARE NOT COMPLETING SECTION B, PROCEED TO PAGE 5 OF THIS FORM.

SECTION B: PETITIONS FILED PURSUANT TO § 19.2-392.12:1(B):

This section is for ancillary matters related to charges or convictions that have previously been automatically sealed under Va. Code §§ 19.2-392.6:1, 19.2-392.7, or 19.2-392.11.

I am asking to seal an ancillary matter related to **(CHOOSE ONE OR BOTH OPTIONS):**

- ☐ conviction(s) or offense(s) automatically sealed pursuant to §§ 19.2-392.7 or 19.2-392.11, with an offense date on or after January 1, 1986.
- ☐ an offense sealed pursuant to § 19.2-392.6:1 where a criminal or civil offense concluded with any final disposition as a charge or conviction of former § 18.2-250.1 (possession of marijuana).

INFORMATION ABOUT ANCILLARY MATTER TO BE SEALED

Identify the offense or conviction that was previously sealed pursuant to §§ 19.2-392.6:1, 19.2-392.7 or 19.2-392.11:.....

CASE NUMBER (IF AVAILABLE) AND DESCRIPTION OF OFFENSE

1. Ancillary Matter

Specific ancillary matter requested to be sealed is

- ☐ a violation or alleged violation of the terms and conditions of a suspended sentence, probation or parole;
- ☐ a violation or alleged violation of contempt of court;
- ☐ a charge or conviction for failure to appear; OR
- ☐ an appeal from a bail, bond, or recognizance order.

2. Case number for ancillary matter identified above:

Date of final disposition for ancillary matter:

Date of arrest for ancillary matter (if applicable):

Name of arresting agency for ancillary matter (if applicable):

Document Control Number (DCN), if available (if applicable):

☐ Some or all of the above information is not reasonably available because

.....

3. Full name at time of ancillary matter:

4. Court of final disposition for ancillary matter:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

5. A copy of the charging document for the ancillary matter (if applicable) is

☐ attached.

☐ not reasonably available because

.....

☐ I am requesting to seal more than one ancillary matter related to the offense or conviction that was previously sealed. (List the second ancillary matter below and list additional ancillary matters on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO § 19.2-392.12:1(B), FORM CC-1203(B).)

INFORMATION ABOUT SECOND ANCILLARY MATTER TO BE SEALED

Identify the offense or conviction that was previously sealed pursuant to §§ 19.2-392.6:1, 19.2-392.7 or 19.2-392.11:.....

CASE NUMBER (IF AVAILABLE) AND DESCRIPTION OF OFFENSE

1. Ancillary Matter

Specific ancillary matter requested to be sealed is

- ☐ a violation or alleged violation of the terms and conditions of a suspended sentence, probation or parole;
- ☐ a violation or alleged violation of contempt of court;
- ☐ a charge or conviction for failure to appear; OR
- ☐ an appeal from a bail, bond, or recognizance order.

2. Case number for ancillary matter identified above:

Date of final disposition for ancillary matter:

Date of arrest for ancillary matter (if applicable):

Name of arresting agency for ancillary matter (if applicable):

Document Control Number (DCN), if available (if applicable):

☐ Some or all of the above information is not reasonably available because

.....

3. Full name at time of ancillary matter:

4. Court of final disposition for ancillary matter:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

5. A copy of the charging document for the ancillary matter (if applicable) is

☐ attached.

☐ not reasonably available because

.....

COMPLETE THIS SECTION FOR ALL PETITIONS FILED PURSUANT TO VA. CODE § 19.2-392.12:1.

Acknowledgments. Check each box to acknowledge that you have read and understand each statement below.

- I. ☐ I understand that I am required to provide a copy of this petition by delivery or by first-class mail, postage prepaid, to the Commonwealth’s Attorney for the county or city where the petition is filed.
- II. ☐ I understand that after this petition is filed, I am required to request that the Central Criminal Records Exchange (CCRE) electronically forward a copy of my Virginia and national criminal history record to the circuit court where the petition is filed. (*Instructions on how to request your criminal history record information are available through the Virginia Department of State Police.*)

- III. ☐ I understand that I cannot request to seal a charge, conviction or ancillary matter that was finalized on the same date as a conviction or charge that was deferred and then dismissed that is not eligible for sealing pursuant to § 19.2-392.12:1.
- IV. ☐ I understand that I can only request to seal multiple charges, convictions or ancillary matters on the same petition if all such charges, convictions, and ancillary matters are eligible for sealing pursuant to § 19.2-392.12:1.
- V. ☐ I understand that my petition may be denied, with or without a hearing, if the charge(s), conviction(s), or ancillary matter(s) listed in this petition are not eligible for sealing.
- VI. ☐ I understand that if my petition for sealing is granted, it will not restore my civil rights or firearm rights.
- VII. ☐ I understand that if my petition for sealing is granted, I will still be required to pay any outstanding fines, costs, restitution, forfeitures, or penalties for charge(s) or conviction(s) that are ordered to be sealed.

☐ **ADDENDUM.** I am requesting to seal multiple charges, convictions or ancillary matters, and I have attached the ADDENDUM TO PETITION FOR SEALING PURSUANT TO § 19.2-392.12:1(A), FORM CC-1203(A) and/or the ADDENDUM TO PETITION FOR SEALING PURSUANT TO § 19.2-392.12:1(B), FORM CC-1203(B). addendums are attached to this petition and are incorporated herein.
NUMBER

.....
DATE

SIGNATURE OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER (VSB No.)

.....
Maria-Alejandra O'Shaughnessy-Whitfield
PRINTED NAME OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
1188 Upper Notch Crossing Road, Apartment 14B
ADDRESS OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
(757) 555-0199 ext. 4417
TELEPHONE NUMBER OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
Virginia Beach, Virginia 23456-2214
CITY, STATE, ZIP OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
maria.alejandra.oshaughnessy.whitfield@longmailexample.org
EMAIL ADDRESS OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

COPY TO THE ATTORNEY FOR THE COMMONWEALTH, AND REQUEST FOR THE
COMMONWEALTH'S POSITION

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1203 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12:1(A) and/or (B)

Statutory route: Va. Code Sec. 19.2-392.12:1(A)

To: the Attorney for the Commonwealth for the county or city named above.

Enclosed is a copy of the petition for sealing filed by Maria-Alejandra O'Shaughnessy-Whitfield in the Virginia Beach Circuit Court. Form CC-1203, acknowledgment I says that the petitioner must provide a copy of the petition, by delivery or by first-class mail with postage prepaid, to the Attorney for the Commonwealth for the county or city where the petition is filed. This is that copy.

The petitioner asks the Attorney for the Commonwealth to state, in writing and to the court, whether the Commonwealth objects to the sealing sought by the enclosed petition. A statement that the Commonwealth does not object is not required for the petition to proceed, and nothing in this request asks the Attorney for the Commonwealth to agree to anything.

The petitioner is not represented by counsel. Correspondence about this petition should go to the address printed on the petition's signature page.

MAILING ADDRESS OF THE ATTORNEY FOR THE COMMONWEALTH

(the petitioner writes it here before mailing)

.....

DATE OF DELIVERY OR MAILING

SIGNATURE OF PETITIONER

This page is not a certificate of mailing and does not say that anything has been mailed. It is completed and signed by the petitioner at the time the copy actually goes out.

Route: obligation:track-pathway:VA:va_seal_enumerated_seven_year:petition-based-sealing

REQUEST TO THE CENTRAL CRIMINAL RECORDS EXCHANGE TO FORWARD A CRIMINAL HISTORY RECORD

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1203 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12:1(A) and/or (B)

Statutory route: Va. Code Sec. 19.2-392.12:1(A)

To: the Central Criminal Records Exchange, Virginia Department of State Police.

Form CC-1203, acknowledgment II says that after the petition is filed the petitioner must request that the Central Criminal Records Exchange electronically forward a copy of the petitioner's Virginia and national criminal history record to the circuit court where the petition is filed. This page is that request.

Please forward the Virginia and national criminal history record of Maria-Alejandra O'Shaughnessy-Whitfield to the Virginia Beach Circuit Court, for the sealing petition identified above.

The form on which the Department of State Police accepts this request, the identification it requires, and any charge for it are not stated on this page, because they are not established by the petition itself. The Department of State Police publishes the current procedure; ask the circuit court clerk if you cannot find it.

PETITIONER'S DATE OF BIRTH

(printed on the petition; copy it here so the record can be matched)

DATE OF THIS REQUEST

SIGNATURE OF PETITIONER

File the petition first. This request is made after filing, not before.

Route: obligation:track-pathway:VA:va_seal_enumerated_seven_year:petition-based-sealing

RECORDS CHECKLIST FOR THIS PETITION

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1203 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12:1(A) and/or (B)

Statutory route: Va. Code Sec. 19.2-392.12:1(A)

The petition asks for facts that live on your own court and arrest records. Gather these before you fill it in, and keep them together with the packet.

☐ The charge or conviction exactly as it is worded on your court record.

☐ The case number of the matter to be sealed. (The platform has filled this in for you as printed above; check it against your record.)

☐ The date of final disposition or conviction.

☐ The date of arrest, and the name of the agency that arrested you.

☐ The document control number (DCN), if your arrest paperwork shows one.

☐ A copy of the warrant, summons or indictment - the petition asks whether it is attached.

☐ Your sex and race as they appear on the court record, and your Social Security number.

☐ If an ancillary matter is included: its case number, disposition date, arrest date, agency, DCN and charging document.

☐ Your criminal history record from the Central Criminal Records Exchange, forwarded to the court after filing.

If a record cannot be found, the petition has a box for that: it asks you to say why the information is not reasonably available. Say what you tried. Do not guess a date.

Route: obligation:track-pathway:VA:va_seal_enumerated_seven_year:petition-based-sealing

FILING INSTRUCTIONS

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1203 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12:1(A) and/or (B)

Statutory route: Va. Code Sec. 19.2-392.12:1(A)

This packet is prepared for sealing one of the enumerated offences under Va. Code Sec. 19.2-392.12:1(A).

WHERE THIS GOES

File the petition with the CIRCUIT COURT for Virginia Beach. CC-1203 prints the circuit court's city or county on its own first page, and the platform has filled it in as printed above. If your case was decided in a General District Court or a Juvenile and Domestic Relations District Court, the petition still goes to the CIRCUIT COURT for that city or county, and the petition asks separately which court decided the case.

WHAT YOU DO, IN ORDER

1. Complete every item this packet's participant instructions list. Each one names the page and the words printed beside the blank.
2. Sign and date the petition yourself. The platform never signs for you and never dates a signature, so those lines are deliberately blank.
3. File the petition with the circuit court clerk.
4. Give or mail a copy to the Attorney for the Commonwealth, using the page in this packet headed for that purpose.
5. After filing, ask the Central Criminal Records Exchange to forward your Virginia and national criminal history record to that circuit court, using the page in this packet headed for that purpose.

TWO THINGS THIS PACKET DOES NOT TELL YOU

- The filing fee, and whether it can be waived. Ask the circuit court clerk. No amount is stated here because none is established by the petition, and an unsourced figure in a filing instruction is worse than no figure.
- How long you have, and exactly how service must be made. The petition's own acknowledgment says a copy goes to the Attorney for the Commonwealth by delivery or by first-class mail with postage prepaid; it does not set a deadline, and neither does this page. Ask the clerk.

WHAT THIS PACKET IS NOT

This is a prepared set of official Virginia forms and companion pages. It is not legal advice, it is not filed for you, and it does not decide whether the court will grant sealing.

Route: obligation:track-pathway:VA:va_seal_enumerated_seven_year:petition-based-sealing